STATE OF MICHIGAN

IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE

FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS, Plaintiff, v. **CONRAD ALAN ROCKENHAUS,** Defendant.	Case No. **26-104594-DO** Hon. **Yvonna C. Abraham**

DEFENDANT'S BRIEF REGARDING FEDERAL PREEMPTION OF VA DISABILITY COMPENSATION AND SSDI BENEFITS

NOW COMES Defendant, **Conrad Alan Rockenhaus**, appearing pro se, and respectfully submits this Brief regarding the federal preemption of Veterans Affairs Disability Compensation and Social Security Disability Insurance benefits. This Brief is filed in response to Plaintiff's claim, made both in her Verified Complaint and in her Response to Defendant's Motion to Terminate the Personal Protection Order (Case No. 26-102221-PP), that she was entitled to Defendant's federally protected disability benefits.

I. PLAINTIFF'S OWN COUNSEL CONCEDES THE BENEFITS ARE SEPARATE PROPERTY

1. As a threshold matter, Plaintiff's own counsel has already conceded the central legal point of this Brief. In her Response to Defendant's Motion to Terminate the PPO, counsel for Plaintiff states: "Federal law recognizes payment of VA and SSDI as separate property, these sources of income are used to calculate support obligations and utilized to support the marital status quo in Domestic Relations cases." (PPO Response, p. 3). This admission is dispositive. Plaintiff's own attorney acknowledges that VA and SSDI benefits are "separate property" under federal law, not marital property to which Plaintiff has any ownership claim.
2. Yet despite this concession, Plaintiff has diverted, retained, and refused to return approximately $39,326.87 in Defendant's VA Disability Compensation and SSDI benefits. The question before this Court is not whether Plaintiff was entitled to these funds, her own attorney says she was not. The question is what remedy is appropriate for the unauthorized taking of federally protected funds that even Plaintiff's counsel acknowledges are separate property.

II. VA DISABILITY COMPENSATION IS NOT MARITAL PROPERTY

3. Federal law expressly prohibits state courts from treating VA disability compensation as marital or community property subject to division in a divorce. The Uniformed Services Former Spouses' Protection Act (USFSPA), 10 U.S.C. §1408, authorizes states to treat only "disposable retired pay" as divisible marital property. The Act expressly excludes from "disposable retired pay" any amounts deducted "as a result of a waiver . . . required by law in order to receive" disability benefits. 10 U.S.C. §1408(a)(4)(B).
4. The anti-assignment provision of 38 U.S.C. §5301(a)(1) further provides:

> *Payments of benefits due or to become due under any law administered by the Secretary*

> *shall not be assignable except to the extent specifically authorized by law, and such payments made to, or on account of, a beneficiary shall be exempt from taxation, shall be exempt from the claim of creditors, and shall not be liable to attachment, levy, or seizure by or under any legal or equitable process whatever, either before or after receipt by the beneficiary.*

5. The United States Supreme Court has twice confirmed that federal law completely preempts state courts from dividing VA disability benefits as marital property. In *Mansell v. Mansell*, 490 U.S. 581 (1989), the Court held that a state court may not treat veteran disability benefits as community property subject to division. In *Howell v. Howell*, 581 U.S. ___ (2017), the Court unanimously reaffirmed this principle, holding that state courts cannot order veterans to indemnify former spouses for reductions in retirement pay caused by disability waivers.

III. DEFENDANT'S BENEFITS AND THE DOCUMENTED DIVERSION

6. Defendant is rated 100% service-connected disabled by the Department of Veterans Affairs for combat-related injuries sustained during active military service, including a Traumatic Brain Injury (TBI) with seizure disorder, PTSD, obstructive sleep apnea, and migrainous headaches. His VA Disability Compensation ranges from $4,317 to $4,764 per month. His SSDI benefits are approximately $2,198 per month. These are his sole sources of income.
7. VA Payment History records, official federal government documents, establish the following documented diversion of Defendant's VA Disability Compensation during the period of September 2025 through February 2026:

   a. Payments ranging from $4,317 to $4,764 per month were directed to bank accounts under Plaintiff's control;

   b. A payment of $4,673.44 on October 1, 2025 was returned marked "Undeliverable: Bad Address", during the same period Plaintiff sent Defendant a TRULINCS email on October 28, 2025 stating "The VA pay has not been deposited for this month," a material misrepresentation designed to conceal the ongoing diversion;

   c. The total VA compensation diverted during this period is approximately $26,837.87;

   d. Separately, Plaintiff received approximately $12,489.00 in SSDI benefits as Defendant's Representative Payee;

   e. The combined total of diverted federal benefits is approximately $39,326.87.

IV. PLAINTIFF HAD NO LEGAL AUTHORITY OVER DEFENDANT'S VA BENEFITS

8. Plaintiff's access to Defendant's VA and SSDI benefits must be analyzed separately because the legal basis for each was fundamentally different, and in the case of the VA benefits, entirely unauthorized.
9. **VA Benefits: Unauthorized Access.** Plaintiff was not Defendant's VA fiduciary, VA representative payee, or VA-appointed agent of any kind. Plaintiff gained access to Defendant's VA benefits by using Defendant's personal id.me credentials to log into his va.gov account, a federal government portal, and redirect his direct deposit to bank accounts under her control. This was unauthorized access to a federal government account. Plaintiff had no legal authority whatsoever to access Defendant's va.gov account, view his benefit information, or redirect his direct deposit. The unauthorized use of another person's credentials to access a federal computer system and redirect federal funds may constitute a violation of the Computer Fraud and Abuse Act, 18 U.S.C. §1030, and federal wire fraud statutes, 18 U.S.C. §1343.
10. **SSDI Benefits: Fiduciary Breach.** Plaintiff served as Defendant's SSA-appointed Representative Payee, a fiduciary role governed by 42 U.S.C. §405(j). As Representative Payee, Plaintiff had a federal

fiduciary duty to use Defendant's SSDI benefits solely for his care, maintenance, and well-being. Plaintiff violated this duty by retaining the funds for her own use while Defendant was incarcerated and unable to monitor his accounts. Diversion of benefits by a representative payee constitutes "misuse of benefits" under 42 U.S.C. §405(j)(9).

V. PLAINTIFF'S OWN ADMISSIONS CONFIRM THE DIVERSION

11. On February 9, 2026, Plaintiff sent written communications to Defendant's federal appellate attorney, Assistant Federal Public Defender Kaycee Berente, containing direct admissions regarding the diversion of Defendant's benefits:

    a. Plaintiff stated that "the joint SoFi account designated for his VA benefits was extra judiciously closed on September 17, 2025, immediately following my Habeas filing", acknowledging awareness that the account receiving Defendant's VA benefits had been closed;

    b. Plaintiff stated that Defendant "cannot open a new FDIC-insured bank account from prison without access to two forms of ID and the internet", demonstrating awareness that Defendant was powerless to redirect his own funds while incarcerated;

    c. Plaintiff stated that "there is no destination for those funds" and that Defendant "will be released with $0.00 accessible cash", acknowledging that she had engineered a situation where Defendant's federally protected benefits had no lawful destination other than accounts she controlled;

    d. Plaintiff announced she was "immediately retaining family counsel to secure a Restraining Order" that would ensure Defendant "will not be able to open an account to redirect funds for the same reason", openly admitting that the restraining order was intended to prevent Defendant from recovering his own federal benefits.

12. These admissions, made to a federal attorney in writing, establish that Plaintiff was not passively receiving benefits she believed she was entitled to. She was actively engineering a situation in which Defendant's federally protected disability compensation would remain under her control by exploiting his incarceration, his lack of identification, and his inability to access the internet from federal prison.

VI. FEDERAL AGENCIES HAVE CONFIRMED THE MISCONDUCT

13. Three separate federal and state agencies have taken action confirming that Plaintiff's retention of Defendant's benefits was unauthorized:

    a. The VA Office of Inspector General has initiated a formal investigation into the misappropriation of Defendant's veteran disability benefits, assigned Case Number 2026-18750;

    b. The Social Security Administration has issued a formal demand to Plaintiff for the return of $12,074.50 in overpayments, sent to "Adrienne Rockenhaus FOR Conrad A Rockenhaus" at Plaintiff's Farmington Hills mailbox. A separate SSA letter dated March 12, 2026 informed Plaintiff that Defendant was incarcerated from October 2025 to March 2026 and "not entitled to Social Security benefits" during that period, directing Plaintiff to return all funds deposited to the account she controlled;

    c. The Ann Arbor Police Department is conducting a criminal investigation into Plaintiff's financial misconduct, assigned Case Number 26-11892;

    d. The SSA OIG has received a formal fraud report regarding Plaintiff's conduct as Representative Payee.

14. Plaintiff's PPO Response claims that "The Social Security Administration (SSA) and/or the Veterans Administration Office of the Inspector General (OIG) has not contacted the Petitioner regarding any sort of investigation." Whether or not the agencies have yet contacted Plaintiff is irrelevant, the investigations exist, the case numbers are documented, and the SSA has already issued a formal demand for the return of funds.

VII. THE DISTINCTION BETWEEN PROPERTY DIVISION AND SUPPORT

15. Defendant acknowledges that under *Rose v. Rose*, 481 U.S. 619 (1987), VA disability benefits may be considered as income for purposes of calculating spousal support or alimony. However, being considered as income for support calculations is fundamentally different from being claimed as marital property to which a spouse is "entitled."

16. A court may consider VA benefits when setting a support obligation pursuant to a court order. A court may not treat VA benefits as a marital asset to be divided, awarded, or retained by a spouse as her own property. And no legal principle, under *Rose*, *Mansell*, *Howell*, or any other authority, authorizes a spouse to unilaterally access a veteran's federal government account using stolen credentials, redirect his direct deposit without his knowledge or consent, retain the funds in her own accounts, lie to the veteran about the status of his payments, and then claim entitlement to those funds as "separate property used to support the marital status quo." What Plaintiff did was not collect support, it was self-help seizure of federally protected funds belonging to a disabled combat veteran who was incarcerated and unable to defend himself.

VIII. CONCLUSION

17. The law is clear. VA disability benefits are not marital property. They cannot be divided in a divorce. Plaintiff's own counsel concedes they are "separate property." Plaintiff's access to Defendant's VA benefits was obtained not through any fiduciary appointment or spousal right, but through the unauthorized use of Defendant's personal id.me credentials to access a federal government account, conduct that may constitute federal computer fraud. As to SSDI, Plaintiff's role as Representative Payee imposed fiduciary obligations she violated. Federal agencies have responded with a formal investigation, a fraud report, a criminal investigation, and a demand for repayment of $12,074.50. Plaintiff's own February 9, 2026 admissions to a federal attorney confirm that she understood Defendant was powerless to protect his benefits from prison and deliberately exploited that vulnerability.

18. Defendant's VA Disability Compensation is not a paycheck. It is the price this nation pays for the traumatic brain injury, the seizures, the PTSD, and the physical damage that Defendant sustained in combat service to his country. Federal law protects these benefits precisely because they are compensation for sacrifice, not a marital asset to be seized by a spouse who gained access through stolen credentials while the veteran was locked in a cell.

RELIEF REQUESTED

WHEREFORE, Defendant **Conrad Alan Rockenhaus** respectfully requests that this Honorable Court:

A. Reject any claim by Plaintiff that she was entitled to Defendant's VA Disability Compensation as marital property or as a spousal entitlement;

B. Recognize that Plaintiff's access to Defendant's VA benefits was obtained through unauthorized use of Defendant's federal login credentials, constituting unauthorized access to a federal government account;

C. Recognize that Plaintiff's retention of Defendant's SSDI benefits violated her fiduciary duties as Representative Payee under 42 U.S.C. §405(j);

D. Order a full accounting of all VA and SSDI benefits received by Plaintiff on Defendant's behalf from September 2025 through the present, including all bank statements, routing numbers, and transaction records;

E. Order Plaintiff to return all misappropriated federal benefits, including the $12,074.50 demanded by the SSA and the $26,837.87 in diverted VA compensation documented in the VA Payment History;

F. Refer the matter of Plaintiff's unauthorized access to Defendant's va.gov account to the appropriate federal authorities for investigation under 18 U.S.C. §1030 and 18 U.S.C. §1343; and

G. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

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